

The 12 Seats They Won't Let Go: How a Legislative Loophole Cost Lives, Two Months of Internet Blackouts, and Billions of Rupees in Azad Kashmir

Pakistan-administered Kashmir — 27 July 2026

On the same Monday that Mirpur Division went to the polls — despite a boycott call from JAAC, which reporting suggests had limited effect on turnout there — security forces shot at protestors in the streets of Rawalakot. By nightfall, both sides were reporting dead. Neither number could be verified. That contradiction — a democratic exercise conducted amid gunfire whose toll nobody can agree on — is the clearest single snapshot of a crisis that has been building since 2023 and has already cost dozens of lives, two months of internet and mobile service shutdowns across the territory, and billions of rupees in disputed losses.

The mechanism at the center of it all

Strip away the protest slogans and the crisis comes down to arithmetic. AJK's Legislative Assembly has 53 seats. Twelve of them are reserved for refugees who fled Indian-administered Kashmir in 1947 and 1965 — but most of those refugees and their descendants no longer live in AJK; they are settled across Pakistan, including in mainland Punjab. They still vote for, and hold, seats in a legislature that governs a territory most of them don't reside in.

The Joint Awami Action Committee (JAAC) argues this isn't a quirk — it's the mechanism by which Islamabad's mainstream political parties guarantee themselves a bloc of AJK's assembly regardless of how the territory's actual residents vote, since refugee-constituency voters tend to vote in line with Pakistan's national parties. That, JAAC says, is how Pakistan keeps the AJK government aligned with whoever holds power in Islamabad.

The government's position, delivered most authoritatively by the AJK Supreme Court, is that the seats are protected under Article 22 of the AJK constitution and can only be changed via a constitutional amendment under Article 33 — not through street protest. In a June 2026 opinion on a presidential reference filed by the AJK president "on the advice of the government," the court held that "the decisive force in Azad Kashmir is not street protests but the supremacy of the constitution," and referred the matter back to the elected assembly.

The catch is that abolishing the seats requires a constitutional amendment, which needs a two-thirds majority of the assembly. But because the 12 seats are outside the 41 directly-contested constituencies, JAAC would need roughly 35 of those 41 seats to hit two-thirds — a supermajority that is effectively unreachable through ordinary elections. In other words, the only "legal" route to abolishing the seats is one the seats themselves make almost impossible to walk. JAAC has concluded the arrangement can

only be undone by pressure outside the assembly's doors — which is exactly the pressure that has now led to bloodshed.

That sequence is why the seats read, to JAAC and its supporters, as seats Pakistan simply won't let go of.

A movement that started with subsidies, not seats

JAAC emerged in 2023 as a civil-rights coalition campaigning on governance issues — subsidies, electricity prices, and the privileges of AJK's ruling elite. It wasn't until 2025 that its central demand narrowed and hardened into the seats question described above.

Unrest in October–November 2025 left at least nine people dead, including three policemen, before the government and JAAC signed an accord covering 12 core and 13 additional points — among them the committee to review the refugee-seat issue. JAAC stood down; the government was given roughly three to four months to act.

By the government's own account, it delivered on infrastructure commitments, electricity subsidies, and withdrew over 170 cases from earlier protests. The seats question, however, went to the courts instead of the negotiating table, and was foreclosed by the June 2026 ruling. JAAC reads this as a familiar pattern: an accord signed to buy time and de-escalate the street, with the substantive demand left to die in a legal reference once things had gone quiet. Federal officials reject that reading, saying they honored the accord and that JAAC returned to protest despite implementation, not because of its absence.

From negotiating partner to "proscribed organization"

In early June 2026, ahead of a planned JAAC long march, the AJK government designated JAAC a proscribed organization under anti-terrorism law. JAAC's supporters see this as part of a familiar script in Pakistan's history: label a rights movement a security threat, or claim foreign backing, once it becomes uncontrollable through negotiation. Authorities have alleged — without public evidence reviewed by independent media — that JAAC has links to "anti-state elements" and foreign-backed digital influence campaigns. JAAC and its supporters reject this as a pretext, pointing out that the movement's demands concern domestic representation, not any foreign cause.

The blackout: what it actually means

For weeks, much of AJK has been under what's been described as a communications shutdown — internet and mobile phone service cut or heavily restricted, not a power outage. The UK's Foreign, Commonwealth & Development Office specifically warned that past unrest in the region had brought "suspension of mobile and internet services"

alongside road closures and clashes between protesters and security forces; the US and Australian missions issued similar advisories.

This is not incidental to the story — it's central to why nothing about this crisis can be independently confirmed. With phones and data down across much of the territory, the lists of alleged victims' names circulating on social media and the firsthand messages reaching journalists and diaspora contacts from inside AJK have become among the only channels of information available, sitting alongside official statements from a government that is itself a direct party to the conflict. Neither can be checked against the other.

Election day, under fire

AJK's general election was rescheduled into three staggered phases beginning July 27 — Mirpur division first, Muzaffarabad division and the 12 refugee constituencies on August 2, and Poonch/Rawalakot division on August 10. JAAC is boycotting the vote outright, arguing that an election held under emergency security deployment, mass arrests of its members, and a communications shutdown cannot be called free or fair. More than 17,000 security personnel were deployed for the first phase alone.

On July 27, as polling closed in Mirpur division, thousands of JAAC supporters camped on the outskirts of Rawalakot tried to march toward Muzaffarabad. What happened next is where the two sides' accounts diverge almost completely.

What AJK Police say: Armed JAAC supporters attacked a security post, and gunfire from the crowd killed a paramilitary serviceman and wounded several officers; police and Rangers vehicles were set alight. Police recorded no protester deaths from the incident and describe their response as upholding "the writ of the state."

What JAAC says: Initial estimates of five protester deaths given by JAAC member Faheem Akber grew through the evening; by late Monday, senior JAAC leader Liaqat Hayat said 18 bodies had been recovered, and a list of 17 named individuals from villages across Poonch and neighboring districts circulated among Kashmiri communities. Among those JAAC named as killed was Usman Nazir — brother of JAAC leader Umar Nazir, who had told the crowd hours earlier that the march would proceed peacefully.

Neither toll has been independently verified by outside news organizations. Taken together with the earlier unrest this year, news agencies have put the cumulative death toll from months of protest-related violence at roughly 30 — a figure that is itself impossible to independently confirm given the restrictions on communication and reporting access into the territory.

The billions in dispute

AJK's government has separately accused JAAC of causing financial losses running into the billions of rupees through the unrest — a figure that comes from the government side alone. No independent or JAAC-side estimate of the cost has been made public to cross-check it against, and it should be read as a disputed, one-sided claim rather than a settled figure.

Why this matters beyond Kashmir

Whatever the true casualty figures turn out to be, the facts not in serious dispute are these: a territory with contested international status has just held an election for its local assembly under a communications blackout, a mass-arrest campaign against a banned political movement, and a security deployment heavy enough that foreign governments warned their own citizens away from the region entirely. A civil-rights movement that began by demanding subsidies and governance reform now finds itself outlawed as a terrorist organization for demanding that people who no longer live in the territory stop holding seats that shape who governs it.

JAAC's supporters argue that international attention is precisely what has been missing — that a dispute over 12 legislative seats has been allowed to escalate to gunfire in the streets of a disputed territory with almost no outside scrutiny, in part because it doesn't fit neatly into existing India–Pakistan Kashmir coverage, and involves a government, Pakistan's, not usually cast as the party under scrutiny in Kashmir reporting.

The other side of the story

Fairness requires stating the government's case plainly, because it is a real one, not a fig leaf. AJK and federal officials argue: that they negotiated in good faith and implemented the bulk of the October 2025 accord; that the courts, not the streets, are the constitutionally correct venue for resolving the seats question, and the AJK Supreme Court has now ruled on exactly that; that the state has an obligation to maintain order and protect citizens, security forces, and even a hospital that police say came under attack; and that a movement which turns to armed confrontation with police forfeits the protection normally due to peaceful protest, whatever the merits of its underlying grievance. They treat the seats dispute as legally settled pending a future constitutional amendment through the assembly itself.

Both narratives cannot be independently reconciled from outside the territory right now — and that, more than either side's specific casualty count, is the story international media and human rights monitors are best positioned to help resolve: independent access, independent verification, and pressure to lift the communications restrictions that currently make it impossible for anyone outside AJK to know with confidence what happened in Rawalakot on July 27, 2026.

Sources: The Express Tribune, The people on the Ground, Muslim Network TV, The News (Pakistan), Arab News Pakistan — reporting from July 27–28, 2026 and June 8, 2026.